

Court No. - 46

Case :- WRIT - C No. - 19757 of 2020

Petitioner :- Dharampal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kumar Dubey

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

At the request of learned counsel for the petitioner, let the case be listed on 3rd December, 2020, to enable the learned counsel for the petitioner to serve a copy of the petition to the counsel for the Power Corporation.

Order Date :- 26.11.2020

LN Tripathi

Court No. - 46

Case :- WRIT - C No. - 19757 of 2020

Petitioner :- Dharampal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kumar Dubey

Counsel for Respondent :- C.S.C., Shrawan Kumar Tripathi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of learned counsel appearing for the respondent-
Power Corporation, put up this case on 16.12.2020 in the
additional cause list to enable him to take instructions.

Order Date :- 10.12.2020

SKT/-

Court No. - 39

Case :- WRIT - C No. - 19757 of 2020

Petitioner :- Dharampal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kumar Dubey

Counsel for Respondent :- C.S.C., Shrawan Kumar Tripathi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard Shri Santosh Kumar Dubey, learned counsel for the petitioner, Shri Shrawan Kumar Tripathi, learned counsel appearing on behalf of respondent No. 2 and learned Standing representing the State.

The instant writ petition has been filed seeking for following relief:

"1. Issue a writ, order or direction in the nature of certiorari quashing the electricity bill-disconnection notice dated 31.7.2019 to 31.08.2019 issued by respondent No. 2.

2. Issue a writ, order or direction in the nature of mandamus directing the respondent No. 2 not to disconnect the electricity of the tube well of the petitioner.

3. Issue a writ, order or direction in the nature of mandamus directing the respondent No. 2 not to recover the electricity dues amounting to Rs. 3,85,000/- from the petitioner.

Learned counsel for the petitioner is disputing the accuracy of the bill issued by respondent-Corporation.

Shri Shrawan Kumar Traipathi, learned counsel for the respondent-Corporation submits that petitioner has a remedy to approach the authority concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He further submits that in case the petitioner approaches the said authority, the competent authority shall consider the same and pass appropriate order within the stipulated period.

Considering the facts and circumstances of the case, the petitioner is directed to approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 within 15 days from today by making a representation, which shall be

considered and decided by the authority concerned in accordance with law within a period of one month thereafter after giving due opportunity of hearing to the petitioner.

Till the final decision is taken by the competent authority, no coercive action shall be taken against the petitioner.

With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 1.2.2021

Ishrat